

1. Session and Chapter.	2. Short Title.	3. How far continued.	4. Amending Act.
(10) 20&21Geo.5. c. 50.	The Public Works Facilities Act, 1930.	The whole Act, except section one, the words in section three from " but any scheme " to the end of the section, and the Second Schedule.	—

PART II.

(11) 24&25Geo.5. c. 31.	The Debts Clearing Offices and Import Restrictions Act, 1934.	The whole Act	—
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CHAPTER 5.

An Act to grant money for the purpose of certain local loans out of the Local Loans Fund, and for other purposes relating to local loans.

[20th December 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. Whereas the term of office of persons who are, at the passing of this Act, Public Works Loan Commissioners under the Public Works Loans Act, 1875, will expire at the end of a period of five years from the first

Appoint-
ment of
Public
Works Loan

day of April, nineteen hundred and thirty-one, and it is expedient to appoint Commissioners for a further period of five years :—

Commissioners for
five years.
38 & 39 Vic.
c. 89.

Therefore the following persons (that is to say) :—

Albert Charles Gladstone, Esq.,
Reginald Abel Smith, Esq.,
Edward Henry Loyd, Esq.,
Robert Lydston Newman, Esq.,
The Right Honourable Lord Clwyd,
Alfred Mildmay, Esq.,
The Honourable Sir William Henry Goschen,
K.B.E.,
Sir Charles Eric Hambro, K.B.E.,
Charles Robert Gilliat, Esq.,
Granville Edward Bromley Bromley-Martin, Esq.,
Edward Clifton Brown, Esq.,
William Baker Neville, Esq.,
Charles Latham, Esq., J.P.,
Harrison Barrow, Esq.,
William Turner Jackson, Esq.,
The Honourable Francis James Rennell Rodd,
Bertram Francis George Currie, Esq.,

shall after the passing of this Act be Public Works Loan Commissioners under the said Act and shall hold office until the expiration of five years from the first day of April, nineteen hundred and thirty-six.

2.—(1) There may be issued by the National Debt Commissioners for the purpose of local loans by the Public Works Loan Commissioners any sum or sums not exceeding in the whole the sum of twenty million pounds.

Grants for
public
works.

(2) The sums so issued shall be issued during a period ending on the day on which a further Act granting money for the purposes of those loans comes into operation, and in accordance with the provisions of the National Debt and Local Loans Act, 1887.

50 & 51 Vict.
c. 16.

3. Whereas it is expedient that the principal of the several local loans specified in the tables contained in Part I and Part II of the Schedule to this Act should, to the extent specified in the last column of those tables, not be reckoned as assets of the Local Loans Fund established under the National Debt and Local Loans Act, 1887 (hereafter referred to as "the Local Loans Fund") :

Certain
debts
not to be
reckoned as
assets of the
Local Loans
Fund.

Now, therefore, the principal of the said loans to the extent aforesaid shall be written off from the assets of the Local Loans Fund, and the provisions of section fifteen of the said Act shall, so far as applicable, apply thereto.

Remission
of arrears of
principal
and interest
in respect of
Eyemouth
Harbour
Loan.

1 Edw. 7.
c. 35.

4. Whereas in pursuance of an agreement made in the year eighteen hundred and ninety-two the sum of ten thousand pounds was advanced by the Public Works Loan Commissioners to the Eyemouth Harbour Trustees on the security of the harbour revenues with the collateral security of the Fishery Board for Scotland :

And whereas by an arrangement confirmed by section three of the Public Works Loans Act, 1901, the liability of the Eyemouth Harbour Trustees in respect of the said Loan was extinguished without prejudice to the liability of the Fishery Board for Scotland to repay the said loan, and, in consequence thereof, the said collateral security is the sole security for the repayment of the said loan :

And whereas the terms of the said collateral security are embodied in a memorandum of agreement between the Secretary for Scotland and the Public Works Loan Commissioners, dated the eleventh day of March, eighteen hundred and ninety-two, whereby a portion of the surplus herring brand fees as defined in clause three of the said memorandum was pledged in security for the repayment of the said loan with interest by the instalments and at the times mentioned in the security given by the Eyemouth Harbour Trustees for the said loan, and it was provided that the said portion of the surplus herring brand fees of any one year should only be applicable to the repayment of the one-fiftieth part of principal and interest on outstanding principal falling due under the security for the said loan in the same year, and should not be applicable to the repayment of arrears of principal :

And whereas the said portion of the surplus herring brand fees so pledged as aforesaid was, during the year ending the thirty-first day of March, nineteen hundred and thirty-five, insufficient to discharge in full the instalment of principal with interest which fell due under the security for the said loan in that year, and the principal sum of two hundred pounds with interest amounting to fifty-three pounds seventeen shillings now

remains unpaid and under the terms of the said memorandum of agreement is irrecoverable :

Now, therefore, the said principal sum of two hundred pounds shall be extinguished, and the said arrears of interest amounting to fifty-three pounds seventeen shillings shall be remitted.

5.—(1) So much of section one of the Public Works Loans Act, 1897, as prescribes a minimum rate of interest for loans made out of the Local Loans Fund shall cease to have effect, both for the purposes of the said section one and for the purposes of section four of the Public Works Loans Act, 1917, and section four of the Public Works Loans Act, 1918; and accordingly the words “not less than two and three-quarters per cent. per annum” in the said section one are hereby repealed.

Amend-
ments as
to Local
Loans Fund.
60 & 61
Vict. c. 51.
7 & 8 Geo. 5.
c. 32.
8 & 9 Geo. 5.
c. 27.

(2) If it is shown by the income account of the Local Loans Fund for the financial year beginning on the first day of April, nineteen hundred and thirty-five, or any subsequent financial year, that the income exceeds the expenditure, the excess shall, instead of being carried to the separate account mentioned in subsection (3) of section four of the Public Works Loans Act, 1897, be credited to the capital account of the said Fund; and accordingly the said subsection (3) is hereby repealed.

(3) Any sums standing at the commencement of this Act to the credit of the said separate account, and any sums forming part of the excess for the financial year beginning on the first day of April, nineteen hundred and thirty-four, which have not been carried to the credit of the said account before the commencement of this Act, shall be credited to the capital account of the said Fund.

(4) Any securities standing at the commencement of this Act to the credit of the said separate account shall be carried to the capital account of the said Fund and shall be deemed to have been purchased in pursuance of the powers of investment conferred by subsection (2) of section thirteen of the National Debt and Local Loans Act, 1887 (which provides that sums credited to the said capital account shall be treated as a sinking fund).

(5) Any local loans stock purchased or deemed to have been purchased as aforesaid may be cancelled from time to time as the National Debt Commissioners think fit.

Relief in
respect of
interest on
loans.
25 & 26
Geo. 5. c. 24.

6.—(1) If a reduction is made under section thirty-one of the Finance Act, 1935, in the rate of the interest payable on a loan made out of the Local Loans Fund, the proceeds whereof have been used for the purpose of making a further loan in pursuance of powers conferred by or under any enactment, the like reduction shall be made in the rate of the interest payable on that further loan.

(2) Where the rate of interest on a loan is reduced under the said section thirty-one or the last foregoing subsection—

(a) any mortgage deed relating to the loan shall have effect as if it provided for payment of interest at the reduced rate for the period in respect of which the reduction is made; and

(b) any such deed providing for the repayment of the principal of the loan with interest thereon by equal instalments shall have effect as if the amount of all the instalments due after the commencement of the said period were reduced by such equal sums as may be necessary to secure that effect is given to paragraph (a) of this subsection.

Short title.

7. This Act may be cited as the Public Works Loans Act, 1935.

Section 3.

SCHEDULE.

PART I.

LOAN BY THE PUBLIC WORKS LOAN COMMISSIONERS
UNDER THE HARBOURS AND PASSING TOLLS, &C.,
ACT, 1861.

Name of Borrower.	Amount of Loan.	Amount to be written off.
Eyemouth Harbour Trustees.	£10,000	£200.

PART II.

LOANS BY THE PUBLIC WORKS LOAN COMMISSIONERS
UNDER THE AGRICULTURAL CREDITS ACT, 1923.

Name of Borrower.	Amount of Loan.			Amount to be written off.		
	£	s.	d.	£	s.	d.
Mr. Reuben Brader -	2,062	0	0	1,172	17	7
Mr. and Mrs. John Brown - - -	2,385	0	0	216	0	3
Mr. Herbert Breedon Fryer - - -	1,950	0	0	1,856	18	3
Mr. Walter James Gowlett - - -	3,097	0	0	570	13	5
Mr. James Arthur Hatwell - - -	2,400	0	0	234	19	5
Mr. Elwellyn Hopkins - - -	540	0	0	231	6	8
Mr. Joseph Parker Jones - - -	7,260	0	0	371	18	10
Mr. Alan Watterston King - - -	4,968	0	0	676	1	8
Mr. Montagu Francis Martin - - -	2,400	0	0	767	12	7
Mr. Richard Kittow Slade - - -	7,500	0	0	1,937	1	8
Mr. William Webster	5,625	0	0	3,368	1	7

CHAPTER 6.

An Act to authorise the Treasury to guarantee securities issued in accordance with a certain agreement made on the thirtieth day of November, nineteen hundred and thirty-five, and to exempt the said agreement and certain other agreements from stamp duty.

[20th December 1935.]

WHEREAS the agreement set out in the Schedule to this Act was made on the thirtieth day of November, nineteen hundred and thirty-five, between the Treasury, the Great Western Railway Company, the London Midland and Scottish Railway Company, the